

23STCV20885 23STCV20885

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MOTIONS

The Court

tenders the following tentative decision in the matter Michael Washington v. Stewart Manhattan Investments Inc., et al., Los Angeles County Superior Court case number 23STCV20885, set for hearing on July 20, 2026. Simeon Rainier Stewart (Defendant) moves for orders compelling further responses to the following discovery requests propounded on Michael Washington (Plaintiff): (1) form interrogatories, set one (FROGs); (2) requests for production of documents, set one (RFPs); and (3) special interrogatories, set one (SPROGs). Defendant also requests a total \$29,700 in monetary sanctions along with evidence and issue sanctions. Plaintiff opposes the motions and argues that sanctions are unwarranted. Defendant's motions to compel further responses are granted in part. The Court awards \$2,700 in sanctions.

A.

Legal Standard

A party may move for an order

compelling further responses to a request for production of documents if the propounding party deems that responses are incomplete, evasive, or contain meritless objections. (Code Civ. Proc., § 2031.310, subd. (a).) A motion to compel further responses to requests for production "shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand." (Id., § 2031.310, subd. (b)(1).) A party may also move for an order compelling further responses to interrogatories if the propounding party deems that responses are incomplete, evasive, contain meritless objections, or improperly exercise the option to produce documents under section 2030.230. (Id., § 2030.300, subd. (a).)

“For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’ [Citation]. Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence. [Citation] These rules are applied liberally in favor of discovery.” (Gonzales v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.) “If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given, or the production be made on the resumption of the deposition.” (Code Civ. Proc., § 2025.480, subd. (i).)

B. Discussion

Defendant propounded the relevant discovery on November 13, 2024. (Mills Decl. ¶ 2.) Plaintiff served initial unverified responses consisting of only objections on December 17 and 24, 2024. (Id. ¶ 3.) After the parties met and conferred, Plaintiff served supplemental responses in March 2025. (Id. ¶ 5.) The parties then met and conferred further, with Plaintiff providing additional supplemental responses in August 2025. (Id. ¶¶ 6–8.) Plaintiff sent more responses in November of that year. (Id. ¶¶ 11–12.) On February 10, 2026, the Court granted motions by Defendant to compel further responses to SPROGs and RFPs, instructing Plaintiff to: (1) remove introductory general objections; (2) eliminate or elaborate as to boilerplate objections in specific responses; (3) log documents withheld for privilege; (4) instruct as to how Defendant might prepare compilations; (5) provide further information regarding any confidentiality objections; (6) complete responses which previously provided only an example; (7) comply with section 2031.230; and (8) remove use of the phrase “subject to and without waiving the objections.” (Minute Order, February 10, 2026.) The parties met and conferred further, and Defendant filed the present motions to compel further responses on May 22, 2026, and June 15, 2026.

Defendant seeks further responses to FROGs 9.1, 9.2, 15.1, and 17.1. Defendant also seeks further verified responses to the same SPROGs and RFPs at issue in the Court’s previous February 10, 2026, order. Defendant requests issue, evidence, and monetary sanctions. The Court will address each discovery matter in turn, before turning to which sanctions are appropriate.

Plaintiff must provide further responses to FROGs 9.1, 9.2, 15.1, and 17.1.

Defendant argues that Plaintiff's responses to FROGs 9.1, 9.2, 15.1, and 17.1 are deficient. Specifically, Defendant notes that the responses contain general objections disapproved of by the Court in its prior order, generic blanket objections, are qualified with phrases limiting the reach of the responses and are evasive and incomplete. Plaintiff contends that he has provided further responses since the filing of Defendant's motion that are in compliance with the Court's prior order, rendering Defendant's motion moot. However, the motion is not rendered moot by Plaintiff's late amended responses, as the responses were deficient when the motion to compel was filed because they contained improper boilerplate objections. Additionally, Defendant details in his separate statement how Plaintiff's answers remain ambiguous or evasive. Finally, Plaintiff argues that Defendant failed to sufficiently meet and confer prior to filing the present motion. But the parties discussed the FROGs throughout May after Plaintiff offered to produce amended responses. (Mills Decl. ¶¶ 29–30.) Thus, Defendant's motion to compel further responses to FROGs is proper. Accordingly, the Court grants Defendant's motion.

Plaintiff must provide further responses to SPROGs 1–3, but not SPROGs 4, 5, 8, 10–15, 17, 18, 20, 21, 23–28, and 36.

Defendant argues that Plaintiff's responses to SPROGs 1–3 4, 5, 8, 10–15, 17, 18, 20, 21, 23–28, and 36 are inadequate. Specifically, Defendant suggests that Plaintiff continues to evade answering the requests at issue and asserts invalid confidentiality objections. While the Court did not foreclose confidentiality objections provided that Plaintiff explained their basis, the Court specifically instructed Plaintiff to at least identify the parties to confidential agreements so that Defendant may test the confidentiality claim. Yet in SPROGs 1–3, Plaintiff continues to refuse to identify the parties to some of the allegedly confidential agreements. Meanwhile, Plaintiff's responses to SPROGs 4, 5, 8, 10, 12, 17, 20, 23, 25, and 36 properly removed objections as instructed in the Court's prior order and provided non-evasive responses; thus, further responses are not required. And Plaintiff properly invokes section 2030.230 with respect to SPROGs 11, 13–15, 18, 21, 24, and 26–28 by referring to the relevant documents. Thus, Plaintiff has not complied with the Court's prior order and further

responses are required with respect to SPROGs 1–3 only.

Plaintiff must provide further responses to RFPs 1, 2, 18–23 but not RFPs 3–13 and 15–17.

Defendant argues that Plaintiff's responses to RFPs 1–13, 15–23 are inadequate. Specifically, Defendant suggests that Plaintiff continues to evade answering the requests at issue and asserts invalid confidentiality objections. While the Court did not foreclose confidentiality objections entirely as discussed above, the Court specifically instructed Plaintiff to at least identify the parties to confidential agreements so that Defendant may test the confidentiality claim. Yet in RFPs 1, 2, and 23 Plaintiff continues to refuse to identify the parties to some of the allegedly confidential agreements. With respect to RFPs 3, 4, 6–13, and 15–17 Defendant argues that Plaintiff has not produced responsive documents, but a proper motion to force production must be brought pursuant to section 2031.320. Meanwhile, Plaintiff's response to RFP 5 properly removed objections as instructed in the Court's prior order and provided a non-evasive response; thus, further responses are not required. Separately, the Court overrules Plaintiff's objection to RFPs 18–22 (except as to tax returns) on privacy grounds despite his privacy interest in financial matters and other companies' privacy interests in their documents given the countervailing interests at stake in terms of determining the details of Plaintiff's business dealings in this matter. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) Thus, Plaintiff has not complied with the Court's prior order and further responses are required with respect to RFPs 1, 2, 18–23 only.

Defendant is awarded monetary sanctions only.

Sanctions may be awarded where a party unsuccessfully opposes a motion to compel further responses, provided that the party does so without substantial justification. (Code Civ. Proc., §§ 2030.300, 2031.310.) Here, Plaintiff opposed Defendant's motions regarding SPROGs and RFPs with substantial justification, as further responses were not warranted in some instances as discussed above. However, Plaintiff lacked substantial justification to oppose Defendant's motion with respect to FROGs. Thus, sanctions are warranted pursuant to section 2030.300, subdivision (d). Counsel testifies to an hourly rate of \$450, which the Court credits. (Mills Decl. ¶ 35.) However, given the mere moderate complexity of the motion to compel

further responses to FROGs at issue, the Court only credits counsel with 4 hours for drafting the motion and 1 hour for reviewing Plaintiff's opposition and drafting a reply. Finally, the Court credits 1 hour for appearing at the hearing. Accordingly, the Court awards Defendant sanctions in the amount of \$2,700 ($[\$450 \text{ per hour}] \times [6 \text{ hours}] = \$2,700$).

C. Conclusion

The Court grants Defendant's motions in part. Plaintiff must provide further responses to FROGs 9.1, 9.2, 15.1, and 17.1, SPROGs 1–3, and RFPs 1, 2, and 18–23. Defendant is awarded sanctions in the amount of \$2,700.